

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DOH

Date: 5/15/2026

Bill Number: SB 178B 34-LS0918N

Short Title (as it appears on BASIS): EXPAND EARLY INTERVENTION SERVICES

What action do you recommend the Governor take?

Select one.

☒ SIGN ☐ VETO ☐ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

This bill would allow the Department of Health to receive a federal match on services currently provided using state funds. The bill also updates the eligibility threshold for Alaskan children to receive early intervention services, reducing the need for special education services after age three. Alaska currently has one of the highest eligibility thresholds for a child to receive early intervention services.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

This bill would allow for the department to pursue the addition of early intervention services as a reimbursable Medicaid service by adding it to the list of services listed under AS 47.07.030(b).

The proposed bill clarifies who is eligible to receive early intervention services by removing mention of an at-risk population.

CONFIDENTIAL & DELIBERATIVE

**State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION**

Every five years the department would be required to consult with medical professionals and the state entity that satisfies the federal requirement for the interagency coordinating council to periodically review the conditions that qualify as a disability under AS 47.20.060-47.20.290.

The bill would change the definition of developmental delay, with three sub-definitions under which an infant or child could meet the definition of having a developmental delay:

1). infants or children who do not meet the eligibility requirements to receive services under the Individuals with Disabilities Education Act (IDEA) would meet the definition of developmental delay if they have a 15% delay in one or more areas. These infants and children are referred to as non-part C since they would not be eligible to receive services under the state's definition of eligibility for early intervention services under Part 303 of the IDEA.

2). infants or children would meet the definition of developmental delay if they have a 25% delay in one area and would be eligible to receive early intervention services under IDEA.

3). infants or children would meet the definition of developmental delay if they have at least a 20% delay in two or more areas and would be eligible to receive early intervention services under IDEA.

The proposed bill would authorize the department to pursue a state plan amendment if necessary to add early intervention services as a Medicaid service and provides for a July 1, 2028, effective date.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1. AS 47.07.030. Medicaid services to be provided. (b) is amended:

- Adds the ability for the department to provide early intervention services for children eligible under AS 47.20.080 (amended in section 3) as a Medicaid service

Section 2. AS 47.20.060. Purpose. is amended:

- Removes language that refers to using discretionary funding to service children under age three who are at risk of developmental disabilities. Early intervention family support services would continue to be available for eligible children under age three. This change is consistent with federal requirements.

Section 3. AS 47.20.070. Establishment of early intervention services system program. (c) is amended:

- Removes language that requires the department to establish a training program for paraprofessionals who provide service to children under age three with developmental delays and disabilities and their families.
- Adds a requirement for the department to consult with medical professionals and the state entity that satisfies the requirement for a state interagency coordinating council (housed in the Governor's Council on Disabilities and Special Education) every five years to review the

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

conditions that qualify as a disability under AS 47.20.060-AS 47.20.290 and make recommendations to the legislature on updating those conditions.

Section 4. AS 47.20.080(a) is amended to read:

- Removes language that differentiates between “core” services and “additional” early intervention services, which is consistent with federal requirements.
- Removes language that references children who are at risk of experiencing a developmental disability if early intervention services are not provided. This change is consistent with federal requirements.

Section 5. AS 47.20.100 is amended:

- Removes reference to at risk children for the individualized family service plan requirements.

Section 6. AS 47.20.290(4) is amended:

- Amends the definition of developmental delay and clarifies the definition
- For services not provided under 20 USC 1431-1445 (IDEA), developmentally delayed is defined as:
 - individuals functioning at least 15 percent below a chronological or corrected age or the equivalent standard deviation below age-appropriate norms in one or more areas listed.
- For services provided under 20 USC 1431-1445 (IDEA), developmentally delayed is defined as
 - individuals functioning at least 25 percent below a chronological or corrected age or the equivalent standard deviation below age-appropriate norms in one or more areas listed; or
 - individuals functioning at least 20 percent below a chronological or corrected age or the equivalent standard deviation below age-appropriate norms in two or more of the areas listed.
- Areas listed include:
 - cognitive development
 - gross motor development
 - sensory development
 - speech or language development

CONFIDENTIAL & DELIBERATIVE

**State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION**

- or psychosocial development, including self-help skills and behavior
- Services not provided under IDEA refers to individuals who receive services who do not meet the eligibility thresholds for services set by the state. Individuals receiving early intervention services outside of the requirements of IDEA are not eligible to receive fund using federal or state dollars for the services. The services themselves may be the same as the services for an individual who is part C eligible, however requirements around funding are different.

Section 7. AS 47.20.290(6) is repealed and reenacted:

- Adds a list of services that are considered to be early intervention service when provided to a child under age three who is developmentally delayed or disabled. This list includes:
 - Assistive technology devices and services
 - Early identification, screening, and assessment
 - Family training and counseling and home visits
 - Health services for the child that are necessary to enable the child to benefit from other early intervention services
 - Medical services only for diagnostic or evaluation purposes
 - Occupational therapy
 - Physical therapy
 - Psychological services
 - Service coordination services
 - Sign language and cued language services
 - Special instruction (developmental therapy)
 - Speech-language pathology and audiology services
 - Social work services
 - Transportation and related costs that are necessary to enable the child's family to receive a service described in this paragraph
 - Vision services
 - Other services defined by the department in regulation

Section 8. AS 47.20.080(b), 47.20.290(1), and 47.20.290(2) are repealed:

- AS.20.080(b). Program eligibility is repealed, which clarifies the order that services can be cut and references language what is proposed to be removed. This repeal is consistent with federal regulations.
- AS.20.290(1) is repealed, which defines “additional early intervention services.” This repeal is consistent with federal regulations.
- AS.20.290(2) is repealed, which defines “core early intervention services.” This repeal is consistent with federal regulations.

CONFIDENTIAL & DELIBERATIVE

**State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION**

Section 9. The uncodified law of the State of Alaska is amended by adding a new section:

- Adds a reporting requirement for the department to report to the legislature by July 1, 2029.
The report must detail
 - the number of children who need early intervention services
 - the number of children who are being provided early intervention services
 - the cost of early intervention services to the state
 - the amount of federal funding received by the state for early intervention services
 - any recommendations for any additional statutory changes that may be needed to improve and expand early intervention services.

Section 10. The uncodified law of the State of Alaska is amended by adding a new section:

- The department will submit a state plan amendment for federal approval to include the changes to AS 47.07.030(b) to include early intervention services.

Section 11. The uncodified law of the State of Alaska is amended by adding a new section:

- Provides for a conditional effect where the act will take effect on July 1, 2028, or before if the United States Department of Health and Human Services approves the amendments or determine an amendment is not necessary.

Section 12. Effective date for Section 1:

- If section 1 takes effect, it takes effect the day after the federal government approves the amendments to the state plan submitted under section 10.

Section 13. Effective date:

- Except as provided in section 12, this act takes effect July 1, 2026.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

HB 376: EXPAND EARLY INTERVENTION SERVICES by House Education

SB 178 is officially by the Senate Health and Social Services Committee but its on behalf of the Alaska Children’s Caucus which includes members of all four caucuses. The Alaska’s Children’s Caucus decided that SB 178 was the number one priority of the Alaska Children’s Caucus. The four co-chairs currently are Representative Ruffridge, Senator Tobin, Senator Cronk, Representative Dibert. There are about 10-15 members of the Alaska Legislature that maintain

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

membership in children's caucus.

Support/Opposition of the Bill

Please identify names, organizations, titles, and phone numbers of those who testified in support or in opposition of this bill.

Support:

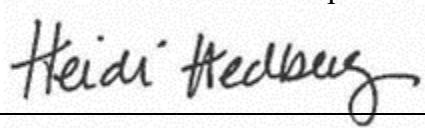
- Niamh Dardis, Director of Reach Infant Learning Program, Vice President of Alaska Infant Learning Association, invited testimony 3/4/26, in support of the bill
- Amy Simpson, Executive Director, Programs for Infants and Children Inc., invited testimony 3/4/26, in support of the bill
- Richard Seville, Governor's Council on Disabilities and Special Education, invited testimony 3/4/26 in support of the bill

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

Governor's Council on Disabilities and Special Education have frequent meetings and often have insight into disability community events – this might be a good partnership to have as signing ceremony.

- Heidi Haas, HHaas@alaskacenter.org, President of the Alaska Infant Learning Program Association
- Amy Simpson asimpson@picak.org
- Niamh Dardis ndardis@reachak.org
- Rich Saville, Governor's Council on Disabilities and Special Education
richard.saville@alaska.gov

Commissioner's Signature:  Date: 5/16/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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